

Ashok Kumar vs Smt. Raj Gupta on 1 October, 2021

Author: Hrishikesh Roy

Bench: Hrishikesh Roy, R. Subhash Reddy

[REPORTABLE]

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO. 6153 OF 2021

(Arising out of SLP(C) No.11663 of 2019)

ASHOK KUMAR ...APPELLANT(S)

VERSUS

RAJ GUPTA & ORS. ...RESPONDENT(S)

JUDGMENT

Hrishikesh Roy, J.

Leave granted.

2. Heard Ms. Sunieta Ojha, the learned counsel for the appellant (plaintiff). Also heard Mr. Rameshwar Singh Malik, the learned Senior Counsel appearing for the respondents (defendants).

3. The appellant Ashok Kumar filed CS No. 53/2013 seeking declaration of ownership of property, left behind by late Trilok Chand Gupta and late Sona Devi. He arrayed the couple's three daughters as defendants in the Suit and claimed himself to be the son of Trilok Chand Gupta and Sona Devi. In their written statement, the defendants denied that the plaintiff is the son of their parents (Trilok Chand Gupta and Sona Devi), and as such he is disentitled from any share in their parental property. The defendants also set up an exclusive claim on the property based on the Will dated 16.4.1982 (registered on 25.4.1982) executed by their late mother Sona Devi.

4. In course of the proceedings before the learned Addl. Civil Judge (Sr. Division), Kalka, on closure of the plaintiff's evidence, when the suit was slated for the other side's evidence, the defendants filed an application on 19.4.2017 seeking direction from the Court to conduct a Deoxyribonucleic Acid Test (for short "DNA test") of the plaintiff and either of the defendants, to establish a biological link of the plaintiff to the defendants' parents i.e. late Trilok Chand Gupta and Smt. Sona Devi. This application was opposed by the plaintiff with the projection that the defendants' application is an abuse of the process of law and that there are adequate evidences placed before the Court by the plaintiff to show that he is the son of Trilok Chand Gupta and Sona Devi. The plaintiff in his opposition had specifically pleaded that the mother of the plaintiff and the defendants had submitted sworn affidavit before the Municipal Committee, Kalka to transfer the Property No. 496, Pahari Bazar, Kalka in her name, mentioning the name of the plaintiff as her son.

5. The defendants' application for conducting the DNA test for the plaintiff (at the cost of the defendants) was disposed of by the Court by referring to the fact that the CS No. 53/2013 is for declaration of ownership of property left behind by late Trilok Chand Gupta and late Sona Devi where the defendants have denied that the plaintiff is their brother or the son of the deceased couple.